CORAM: IN THE ASOFAN DISTRICT COURT HELD ON THE 15TH JULY, 2025 BEFORE HER WORSHIP NANCY TEIKO SEARYOH (MRS.) SITTING AS MAGISTRATE

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SUIT NO A9/14/24

BETWEEN

SAVIOR DOE - PLAINTIFF
OF ABC DOWN

VRS

MADAM MERCY - DEFENDANT
OF ABC DOWN

----------J U D G E M E N T ----------

INTRODUCTION

By a Form Nine (9) filed on the 7th November, 2023, the Rent Officer made the following recommendations to the Rent Magistrate;

1) Order Respondent to refund GH¢4,490 to Complainant as ECG arrears and the water bills of GH¢580.00.

2) Make such order(s) as to cost.

The facts that led to these recommendations are that the Plaintiff hauled the Defendant and others before the Rent Control Amasaman for them to pay ECG arrears. The Plaintiff claimed the Respondent had occupied his premises for several years and have defaulted in payment of utility bills and that he wanted them to vacate the premises since their various tenancies had ended. He said that the Respondent owed electricity bills that summed up to GH¢4,490 and water bills that runned into thousands. He stated that due to the arrears of utilities owed by the Respondents the water has been disconnected from the premises they occupy.

In her defence, the Defendant indicated that she was a tenant in Plaintiff's house and that the Plaintiff gave them a letter from the Rent Control to meet him there. When they went to the Rent Control Office they were not able to conclude on the subject matter and were asked to return on the 5th September, 2023. She stated that they were two on the meter and the Rent Control Officer advised them to divide the bill into two and pay. She again stated the one she shares meter with informed her that he spoke to the landlord and he added three more people to the line without her knowledge and consent. She stated that she informed the Rent Officer that she could not pay the amount given her because, she used only fan, light and television. She again averred that the office asked them to go and return on Wednesday since they had the meeting on Monday only for the caretaker of the house to serve her with a letter from Rent Control. She finally stated that she did not know how much she owed until she got a letter to appear before this Court.

Parties were referred to attempt settlement with the Court Connected Alternative Dispute Resolution (ADR) and they filed partial terms as follows;

1) The Plaintiff agrees that the amount of GH¢4,490 due as ECG bills and water; the Defendant is to pay half of the amount being GH¢2,245.00
2) That the Defendant intimates that out of the GH¢2,245.00 she is ready to pay GH¢700.00.
3) The Plaintiff has agreed to accept the GH¢700.00 offered by the Defendant however insist that the remaining balance or outstanding of GH¢1,545.00 should be determined by the Court.
4) The Parties have agreed that the Defendant should pay the GH¢700.00 into ECG accounts number 701834006 with meter number 012111840 in the name of Madam Ruth Enning.

The Defendant proposed to make three installment payments into the account i.e. on or before 29th February, 2025, GH¢200 on or before 30th April, 2024, GH¢300.00.

The Court ordered Parties to file their witness statement in order that the Court determines the outstanding issue of whether or not the Defendant should pay the remaining balance or outstanding of GH¢1,545.00. Parties complied with the orders of the Court and filed their witness statement. The Plaintiff testified himself and called one witness whilst the Defendant testified and called no witnesses. The Court also made an order for the meter be read and the total bill made available to Court which was complied with.

At the close of hearing, the issue that arose for determination is'

Whether or not the Defendant should be ordered to pay the remaining balance of GH¢1,545.00.

In civil cases, the law is that he who asserts usually has the burden of proving his case on the preponderance of probabilities and he proves it by providing sufficient evidence in accordance with Sections 11 (4) and 12 of the Evidence Act 1975 (NRCD 323). In effect the burden of proving any particular averment or allegation is on the one who made it.

In **Ababio vrs Akwasi III [1995 – 1996] GBR 774** it was held

"It is the party who raises in his pleadings an issue essential of success of his case who assumes the burden of proving it. The burden only shifts to the defense to lead sufficient evidence to tip the scales in his favour when on a particular issue the Plaintiff leads some evidence to prove his claim. If the Defendant succeeds in doing this he wins, if not he loses on that particular issue"

To begin with, the Court found certain inconsistencies in the testimony of the Defendant. In her defence, the Defendant told the Court that the Plaintiff gave the tenants in the house a letter from the Rent Control to meet him there. She stated that **they were two on the meter** and so the Rent Control Officer advised that they divide the bill into two and pay but the one she shared the meter with informed her that she spoke to the landlord and he added three more people to the line without her knowledge and consent and so at the Rent Control Office the bill was divided and she informed them that she would not be able to pay because the items she was using were a fan, light and television. Meanwhile, in her witness statement the Defendant stated that Plaintiff is her former landlord and that she stayed in his house for four (4) years and within that period the landlord assisted her and other tenants with an electricity meter within her one and half

year stay in the house. She stated that they, **the five tenants contributed to pay electricity bills** as and when it fell due. She further averred that on the 21st August, 2023, she was served with a summons from Rent Control, Amasaman to make appearance by the 28th August, 2023. She stated that she went to the Rent Control together with the four (4) other tenants and the Plaintiff was ordered to share among them tenants arrears of GH¢2,300 being amount owed for electricity bills as at January, 2023 by the 7th September, 2023 before next visit to the Rent Control. The Plaintiff refused to share the arrears as ordered which made them not too report to the Rent Control as instructed. Due to the conflicting testimonies in the defence and the witness statement, the Court does not find the Defendant credible and hereby rejects the Defendants testimony.

On the first issue as to whether or not the Defendant should be ordered to pay the outstanding amount of GH¢1,545.00. It is the case of the Plaintiff that he rented his single room self-contained room to the Defendant on 1st March, 2022 for a period of eighteen (18) months ending 1st September, 2023 at GH¢200 per month and that he had by that time made all connections for the supply of electricity and water to the said house expecting the Defendant and one other to be paying the bills as and when it was due per the agreement but the Defendant refused to pay. He stated that the electricity bill of GH¢2,245. GH¢4,490 was to be shared equally among two tenants leaving the Defendants electricity bill at GH¢2,245 and water bill GH¢548.00 totaling GH¢2,793.00. He further averred that on the 17th March, 2023 he served a warning notice indicating his intention to use the Defendants remaining rent advance balance to defray the utility bills yet the Defendant put a deaf year to the notice and despite his persisted efforts the Defendant occupied the room but refused to pay electricity and water bills and that all efforts made by him to enforce payment had proven futile.

The Plaintiff called his witness PW1 – Yaw Aboagye who also corroborated the Plaintiff's testimony. He testified that he is a tenant as well as the caretaker of the said house. He stated that there were three meters in the house when he moved in. He stated that he lived down stairs and they share one meter whilst those at the top have two meters. He further averred that the Defendant lives upstairs and she shares a meter with one tenant called Ebenezer. He again averred that they had problem with their water bill and so they went to the Mile 7 Police Station to share it but the Defendant refused to pay her part and that the Defendants refusal to pay her bills had caused the institution in charge to disconnect their lines denying the new tenants access to electricity and water.

On the totality of the evidence adduced by the Parties the Court hereby holds that the Defendant owes electricity and water bill totaling GH¢2,245.00. The Court hereby orders the Defendant to pay the said sum to the Plaintiff.

Disposition

After considering the total evidence adduced by the Parties, the Court found inconsistencies in the Defendant's testimonies and therefore rejects the testimony of the Defendant.

The Court hereby orders as follows;

i. That the Defendant pays the full amount of GH¢2,245 to the Plaintiff being half of the total amount of water bills and electricity bill.
ii. Cost of GH¢1,000 for the Plaintiff against the Defendant.

H/W NANCY T. SEARYOH (MRS)

MAGISTRATE

PLAINTIFF PRESENT

DEFENDANT PRESENT

NO LEGAL REPRESENTATION